

MT204, Module-4

Constitution of India

District Administration

- District Administration means the management of the task of government so far as it lies within an area legally recognized as a district. The district is kept under the charge of a district officer—called either Deputy Commissioner or District Collector who acts as the eyes, ears and arms of the State Government. As such D.C.'s task is of pivotal nature. This task is of five kinds viz., Revenue, Magisterial, Judicial, Executive and Development.
- **Law and order and magisterial matters:** The first group of functions relates to public safety and tranquility. Maintenance of Law and order is the joint responsibility of the Superintendent of Police, who head the Police force in the district, and the District Magistrate. The Deputy Commissioner of the District is also the District Magistrate. Though there is a separate department for the administration of jails, the district Magistrate exercises general supervision over the Jails in his district.

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- **Land Revenue :** The second group of functions relates to revenue administration. While the most important component of this group is land administration including **maintenance of land records**, it also includes the **assessment and collection of land revenue** and also collection of the other **public dues** which are collected as arrears of land revenue. The Deputy Commissioner is a designated Revenue officer in various laws governing the land to deal with disputes arising out of land records and management of public lands and properties. The other revenue officers, namely, the Assistant Commissioners, the Tahsildars and the Deputy Tahsildars also perform functions of dealing with land disputes under the overall supervision and control of the Deputy Commissioner.
- **Development Activities:** These include **Public Health, Education, Social Welfare**, welfare of **Backward Classes and communities**. Each of these functions is looked after by separate department, headed by a specialist officers in the district. The various special economic programs like Jawahar Grama Samrudhi Yojana (JGSY), Swarna jayanthi Grama Swarozgar Yojana, etc. and the poor people's housing scheme Ashraya are

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- implemented by the Zilla Panchayats in each district. The Deputy Commissioner does not get a direct role in these schemes. However, since these programs call for an integrated effort by various field departments at the district level, Public Works Department and Minor Irrigation, Forest etc., the role of D.C. in co-coordinating and guiding their activities is of prime importance for successful implementation of these programs.
- **Regulatory Functions:** These include
- Control, regulation and distribution of Food and Civil supplies and essential commodities.
- Excise and Prohibition matters.
- All matters relating to Stamps and Registration, Societies registration Act, 1960, Registration of firms under the Indian Partnership Act, 1932.
- (iv) Matters relating to Urban land (ceiling and regulation), vacant lands in urban areas (prohibition of alienation Act, 1975).
- (v) Land Improvement Loans Act, 1963, Agriculturists Loans Act, 1963., Non-agricultural Loans Act, 1958.

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- **Elections and Citizenship Matters:** This relates to holding of elections of Parliament, State Legislature and Local Bodies. The Deputy Commissioner is responsible for the proper observance of process of elections from the registration of voters to the declaration of results of elections.
- **Municipal Administration Matters :** The DC is generally responsible for the supervision and proper functioning of the urban local bodies. The implementation of various developmental and anti-poverty measures for the urban poor is monitored by the Deputy Commissioner. The most important of these programs are the Swarna Jayanthi Shahari Rozgar Yojana (SJSRY), Urban Ashraya (Housing), and the Integrated Small and Medium Towns Development Development(IDSMT) Programs.
- **Emergency Relief :** In situations like floods, famines, accidental fires, earthquakes and other natural calamities, the entire district administration is geared to meet the threat and the DC assumes charge to co-ordinate the activities of the various departments and takes proper steps to alleviate sufferings of the people.

Panchayats

- **Panchayati Raj** (Council of five officials) is the system of local self-government of villages in rural India as opposed to urban and suburban municipalities. It consists of the Panchayati Raj Institutions (PRIs) through which the self-government of villages is realized. They are tasked with "economic development, strengthening social justice and implementation of Central and State Government Schemes. It stipulates that in states or Union Territories with more than two million inhabitants there are three levels of PRIs:
- the Gram Panchayats at village level
- the Panchayat Samiti at block level and
- the Zila Parishad at district level

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- In states or Union Territories with less than two million inhabitants there are only two levels of PRIs. The Gram Sabha consists of all registered voters living in the area of a Gram Panchayat and is the organization through which village inhabitants participate directly in local government. Elections for the members of the Panchayats at all levels take place every five years. The Panchayats must include members of Scheduled Castes (SCs) and Scheduled Tribes (STs) in the same proportion as in the general population. One third of all seats and chairperson posts must be reserved for women, in some states half of all seats and chairperson posts.
- In India, the Panchayati Raj now functions as a system of governance in which gram panchayats are the basic units of local administration. The system has three levels: Gram Panchayat (village level), Mandal Parishad or Block *Samiti* or *Panchayat Samiti* (block level), and *Zila Parishad* (district level). Currently, the Panchayati Raj system exists in all states except Nagaland, Meghalaya, and Mizoram, and in all Union Territories except Delhi.

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- The Panchayats receive funds from three sources:
- Local body grants, as recommended by the Central Finance Commission
- Funds for implementation of centrally sponsored schemes
- Funds released by the state governments on the recommendations of the State Finance Commissions
- The Sarpanch is its elected head of gram panchayat . The members of the gram panchayat are elected directly by the voting-age village population for a period of five years.
- **Sources of income-** Taxes collected locally such as on water, place of pilgrimage, local *mandirs* (temples), and markets, A fixed grant from the State Government in proportion to the land revenue and money for works and schemes assigned to the Parishads & Donations

Municipalities

- Municipal or local governance refers to the third tier of governance in India, at the level of the municipality or urban local body. In India, a Nagar Palika or Municipality is an urban local body that administers a city of minimum population of 100,000 but less than 1,000,000. However, there are exceptions to that, as previously nagar palikas were constituted in urban centers with population over 20,000 so all the urban bodies which were previously classified as Nagar palika were reclassified as Nagar palika even if their population was under 100,000.
- The municipal bodies of India are vested with a long list of functions delegated to them by the state governments under their respective municipal legislations. The Twelfth Schedule of Constitution provides an illustrative list of *eighteen functions*, that may be entrusted to the municipalities.

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- Public health includes water supply, sewerage and sanitation, eradication of communicable diseases etc.; welfare includes public facilities such as education, recreation, etc.; regulatory functions related to prescribing and enforcing building regulations, encroachments on public land, birth registration and death certificate, etc.; public safety includes fire protection, street lighting, etc.; public works measures such as construction and maintenance of inner city roads, etc.; and development functions related to town planning and development of commercial markets. In addition to the legally assigned functions, the sectoral departments of the state government often assign unilaterally, and on an agency basis, various functions such as family planning, nutrition and slum improvement, disease and epidemic control etc.
- Besides the traditional core functions of municipalities, it also includes development functions like planning for economic development and social justice, urban poverty alleviation programs and promotion of cultural, educational and aesthetic aspects.

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- The members of the Nagar palika are elected representatives for a term of five years. The town is divided into wards according to its population, and representatives are elected from each ward. The member select a president among themselves to preside over and conduct meetings. A chief officer, along with officers like an engineer, sanitary inspector, health officer and education officer who come from the state public service are appointed by the state government to control the administrative affairs of the Nagar Palika.